

MASTER SERVICES AGREEMENT

ARTICLE I: SERVICES AND DELIVERABLES

- 1.1 Statements of Work. Provider shall perform consulting and engineering services as described in mutually executed Statements of Work.
- 1.2 Standard of Performance. Provider warrants that all services will be performed in a professional, workmanlike manner.

ARTICLE II: COMPENSATION AND PAYMENT TERMS

- 2.1 Fees. Client shall pay Provider the fees set forth in the applicable Statement of Work.
- 2.2 Invoicing. Invoices shall be rendered monthly and payable within thirty (30) days of receipt. Overdue balances shall be subject to a late charge of one and one-half percent (1.5%) per month.

ARTICLE III: INTELLECTUAL PROPERTY RIGHTS

3.1 Client Materials. Client retains exclusive ownership of all pre-existing data, materials, and trademarks provided to Provider.

3.2 Work Product. All deliverables created specifically for Client under any SOW shall be deemed 'work made for hire' and the sole property of Client.

ARTICLE IV: INDEMNIFICATION AND WARRANTIES

4.1 Provider Indemnity. Provider shall defend and indemnify Client against any third-party claims alleging that the Provider's services or materials infringe upon the intellectual property rights of a third party.

ARTICLE V: LIMITATION OF LIABILITY

5.1 Consequential Damages Waiver. Neither party shall be liable to the other for indirect, special, incidental, or consequential damages.

5.2 Aggregate Liability Cap. In no event shall either party's aggregate liability under this Agreement exceed the total amount paid by the party to the other under this Agreement.

ARTICLE VI: MISCELLANEOUS PROVISIONS

6.1 Severability. If any provision of this Agreement is held invalid, the remainder shall remain in full force and effect.

6.2 Entire Agreement. This Agreement constitutes the complete understanding between the parties.